

8.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	MOTION FOR SANCTIONS Defendant Cerna Healthcare, LLC dba Cerna HomeCare’s Motion for Sanctions is GRANTED in part. Defendant moves for sanctions based on Plaintiff’s incorrect allegation at paragraph 95 of the Complaint that Plaintiff was 82 years old at the time of Defendants’ conduct, when in fact Plaintiff was approximately 57 at the time of the events in the Complaint. However, paragraph 4 of the Complaint stated Plaintiff was 59 years old, which Plaintiff’s discovery responses confirmed. Paragraph 4 states Plaintiff is a “dependent adult” under the Elder and Dependent Adult Civil Protection Act. The motion is unopposed. Plaintiff has filed a motion for leave to amend to state her correct age, set for hearing on 6/2/26. Plaintiff’s counsel has filed a motion to be relieved but the notice of motion does not state a hearing date. Defendant asserts Plaintiff’s incorrect age makes her Elder Abuse claim non-viable and seeks sanctions of \$2,060.00 as well as an order striking Plaintiff’s first cause of action for elder/dependent abuse. The unopposed motion is granted as to monetary sanctions of \$2,060 against Plaintiff’s counsel for making the error as to Plaintiff’s age and failing to promptly correct it, causing Defendant to incur costs to correct the error. The motion is denied as to the request to dismiss the first cause of action. Defendant may bring an appropriate dispositive motion if it believes Plaintiff does not qualify as a dependent adult under the Act.
9.	IRVINE SPECTRUM CENTER LLC VS. N&P LV HOLDINGS LLC 2025-01459549	MOTION FOR TERMINATING SANCTIONS Plaintiff Irvine Spectrum Center, LLC’s Motion for Sanctions is GRANTED in part and DENIED in part. Terminating sanctions are GRANTED against Defendant N&P LV Holdings, LLC. Defendant’s answer to the Complaint is STRICKEN. The court may impose monetary, issue, evidence, or terminating sanctions on a party who misuses the discovery process. (Code Civ. Proc. § 2023.030(a)-(d).) Failing to respond to discovery and disobeying a court order are misuses of the discovery process. (Code Civ. Proc. § 2023.010(d)(g).) Here, Defendant has failed to provide responses and pay the sanction as ordered by this Court. Thus,